

100 Beal Street Senior Affordable Housing

EXECUTIVE FACT SHEET & LEGAL BRIEFING (VERSION 2)

Location: 100 Beal Street, Hingham, MA 02043	Fee Simple Owner: Hingham Housing Authority (M.G.L. c. 121B)
Parcel ID: Map 58, Block 0, Lot 23 (15.014 Total Acres)	Designated Developer: Peabody Properties / AHSC Developers LLC
Proposed Disposition Footprint: Lot B (8.60 Acres / ~375,000 sq. ft.)	Program Scope: 68 Units (100% Affordable Senior Rental; 62+)
Net Buildable Upland: ~6.50 Acres (Outside Wetland Setbacks)	Transaction Structure: 99-Year Triple-Net Lease (100% Reversion)

1. KEY INACCURACIES CORRECTED & AUTHORITATIVE CLARIFICATIONS

Parameter	Prior Inaccuracy / Draft Text	Authoritative Verified Reality & Legal/Record Basis
Conflation with CAL Senior Center	Stated Town Meeting (Arts. 12 & 15) rejected land swaps, "solidifying 100 Beal Street."	Completely separate projects: • Center for Active Living (CAL): Municipal community center off Bare Cove Park Drive (Council on Aging). Art. 15 (2025) passed for design; Art. 12 (2026) won a majority (510 Yes to 470 No) but failed the 2/3 borrowing threshold for its \$29.93M debt exclusion. • 100 Beal Street: Independent 68-unit affordable senior residential apartments by HHA. Never involved in a land swap; HHA had already awarded the project to Peabody Properties in Aug 2025.
Parcel Acreage Breakdown	Described informally as a "6.5-acre parcel."	Parent parcel is 15.014 acres . Under the HHA RFP, the disposition area (Lot B) is 8.6 acres (~375,000 sq. ft.). The ~6.5-acre figure is the net buildable upland area after deducting mandatory wetland setbacks. Lot A (~2.4 acres) contains the preserved youth home; Lot C (~3.55 acres) is open buffer. No official record defines the parcel as 6.5 acres.
State Deed Restriction Timing	Placed alongside the February 2019 Select Board litigation vote.	While the Select Board voted to litigate on February 26, 2019 , the state (DHCD/EOHLC) did not record its restriction then. Following an attempt by HHA on June 5, 2019 to transfer the parcel, the state issued warning letters and recorded its formal <i>Notice of Statutory Transfer Restriction</i> on July 18, 2019 (Book 51379, Page 244).
Original Unit Baseline	Noted as "25–40 units."	Town records and early feasibility studies established the initial baseline at 20–48 units , which then expanded to 60 units in the 2025 RFP, and 68 units under Peabody Properties' winning proposal.
Civil Engineering of Record	Attributed to "Weston & Sampson" for the RFP package.	The site civil feasibility study, ANR subdivision layout, and due diligence reporting for the HHA RFP were prepared by Bohler Engineering , with ALTA surveys by Control Point Associates, Inc. , wetland science by Lucas Environmental, LLC , and MEP review by Nangle Engineering . (<i>Weston & Sampson handles landscape/site design for the developer, but did not prepare the RFP package</i>).

2. LEGAL CHAIN OF TITLE & STATUTORY COVENANTS

- 1. Fee Simple Conveyance (1989):** Deeded by Town to HHA on March 7, 1989 ([Book 9097, Page 158](#)). Original restriction for adolescent facility included a 30-year right of re-entry that statutorily expired on **March 7, 2019** pursuant to M.G.L. c. 184A.
- 2. The 2001 MOU & Litigation Vote (Feb 2019):** Bunker demolition led to a June 12, 2001 MOU. On February 26, 2019, Selectmen voted 3–0 to authorize litigation against HHA to enforce land transfer.
- 3. State Statutory Title Restriction (July 2019):** Following HHA's June 5, 2019 transfer vote, DHCD intervened and recorded an encumbrance on July 18, 2019 ([Book 51379, Page 244](#)) under M.G.L. c. 121B, § 34, prohibiting disposition without state consent. On Sept 7, 2021, HHA voted 4–0 to formally rescind the transfer.

4. 2006 Town Meeting Deed Amendment (Article 38): On April 26, 2006, Town Meeting unanimously amended the 1989 deed restriction to permit multi-family senior/affordable housing on site.

5. 2016 CPA Feasibility Appropriation (Article 24): Town Meeting voted exactly \$30,000 in CPA funds to HHA for the initial 100 Beal Street housing feasibility study.

3. 99-YEAR GROUND LEASE FRAMEWORK & REVERSION MECHANICS

Lease Covenant	Specific Legal & Financial Terms
Term & Expiration	Ninety-nine (99) years from "Commencement Date" (triggered upon loan closing and unappealable 40B permit, projected ~2027/28; term runs to ~2126–2127).
Triple-Net (NNN)	Developer bears 100% of construction, maintenance, utilities, insurance, and taxes/PILOT. HHA incurs zero operating liability.
Public Consideration	Minimum \$500,000 upfront payment paid to HHA at loan closing + ongoing annual ground rent.
Public Reversion (Sec. 15.1)	Upon Year 99 expiration, full fee title to the 3-story, 68-unit building, grounds, and improvements automatically reverts 100% to HHA at zero cost to the Town.
Lot A Adolescent Facility	Lot A (~2.4 acres housing the existing 12-bed Bay State Community Services facility) is excluded from the ground lease and remains under direct HHA ownership.

4. ZONING, CHAPTER 40B PERMITTING & SAFE HARBOR DYNAMICS

- Official & Open Space (OO) Zoning: Multi-family housing is barred in OO districts, requiring a Comprehensive Permit under M.G.L. c. 40B before the Hingham ZBA.

Safe Harbor Benchmark (760 CMR 56.03): Because Hingham's Subsidized Housing Inventory (SHI) exceeds 10%, the Town has statutory safe harbor. The ZBA has legal latitude to reject hostile 40B petitions. Therefore, 100 Beal Street is proceeding as a negotiated "friendly" 40B with broad municipal alignment.

5. CONSERVATION ADJUDICATION & WEYMOUTH BACK RIVER ACEC

- Order of Resource Area Delineation (ORAD): Approved 5–0 on Nov 4, 2024; issued Nov 7, 2024 under MassDEP File No. 034–1509 (Lucas Environmental & Control Point Associates).
- Resource Envelope: Three BVW systems, two IVWs, certified vernal pool, and 200-ft Riverfront Area.
- Back River ACEC Watershed: Discharges into Hockley Run and Tucker's Swamp tributary to the 1982 Weymouth Back River ACEC, subjecting stormwater designs to heightened water quality and thermal discharge scrutiny.